



CHAPTER xxi.

An Act to authorise further improvements at Spitalfields Market and to empower the Corporation of London to charge expenses in connection with the said market and certain other expenses to the general rate to make provision with reference to the superannuation and pension funds of the Corporation and for other purposes. A.D. 1922.
[31st May 1922.]

WHEREAS the mayor and commonalty and citizens of the city of London acting by the mayor aldermen and commons of that city in common council assembled (in this Act referred to as "the Corporation") are the owners of the Spitalfields Market situate in the metropolitan borough of Stepney :

And whereas by the City of London (Various Powers) Act 1914 the Corporation were empowered to execute certain street improvements in the neighbourhood of the said market being widenings of existing streets and the provision of northern and southern lay-bys and approaches for the purpose of facilitating the business of the market and by the City of London (Various Powers) Act 1920 the time within which the said street improvements should be completed was extended as therein provided :

And whereas from the experience derived by the Corporation in the working of the market it is found that an extension thereof is necessary and that certain variations of the authorised scheme of improvements are desirable and the departmental committee on the wholesale food markets of London have reported in favour of

A.D. 1922. the alterations in the scheme of improvements by this
— Act authorised :

And whereas the Charter dated the twenty-ninth day of July one thousand six hundred and eighty-two and granted by His late Majesty King Charles the Second to one John Balch and his heirs and assigns to hold a market at Spitalfields limits the holding of the said market to Thursday and Saturday in each week but for many years it has been held on other days of the week and it is expedient that the said market should henceforth be held on every day of the week except Sunday :

And whereas the Spitalfields Market undertaking of the Corporation is at present by virtue of the City of London (Spitalfields Market) Act 1902 charged upon the market revenue and as a collateral or second security upon any of the estates and revenues of the Corporation :

And whereas at the time of the passing of the said Act of 1914 the said market revenue and other the estates and revenues of the Corporation were deemed to be sufficient to meet the charges secured thereon but owing to conditions created by the war the said market revenue and other estates and revenues will be insufficient to meet those charges and the further charges necessary to carry Part II. of this Act into execution and it is expedient that the moneys raised or expended or to be raised or expended for the purposes of the Spitalfields Market undertaking should as a collateral or second security be charged upon the general rate of the city in lieu of the said other estates and revenues :

And whereas the total borrowing powers now authorised for the purposes of the Spitalfields Market undertaking and improvements in connection therewith amount to one million two hundred and fifty thousand pounds but such powers have not been exercised and an estimate has been prepared of the total amount which will be required for the purposes of the said undertaking including the improvements by this Act authorised and such estimate amounts to two million pounds and it is accordingly expedient that the existing borrowing powers should be repealed and that new borrowing powers to the amount of two million pounds should be authorised and such amount should be secured upon the said market revenue and general rate :

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And whereas the estates and revenues of the Corporation have for many years been charged with the expenses of numerous public services the cost of which must otherwise have been defrayed out of rates and it is expedient that the said estates and revenues should be relieved of the cost of certain of such services and that the Corporation should be empowered to pay in whole or in part out of the general rate the contributions now payable by them out of the said estates and revenues to and in respect of the Corporation of London Officers' Pension Funds No. 1 and No. 2 and the expenses of the Corporation as port sanitary authority of the Port of London and the sums to be provided for interest and contributions to sinking funds in respect of moneys borrowed under the Acts relating to the Holborn Valley Improvements :

And whereas it is expedient that the Corporation of London Officers' Pension Funds No. 1 and No. 2 should be closed to new entrants and should be merged in the Superannuation and Pension Funds established by the City of London (*Various Powers*) Act 1912 and that such last-mentioned funds should be open to all officers and servants of the Corporation duly placed on the establishment staff and that provision should be made for the transfer to the last-mentioned funds of any members of the said Funds No. 1 and No. 2 who may desire to be so transferred :

And whereas it is expedient that the other provisions in this Act contained should be enacted :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of London and are in this Act referred to as the deposited plans sections and book of reference :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords

[Ch. xxi.] *City of London* [12 & 13 GEO. 5.]
(*Various Powers*) Act, 1922.

A.D. 1922. Spiritual and Temporal and Commons in this present
— Parliament assembled and by the authority of the same
as follows (that is to say) :—

PART I.

INTRODUCTORY.

Short title. 1. This Act may be cited as the City of London
(Various Powers) Act 1922.

Division of
Act into
Parts. 2. This Act is divided into Parts as follows :—
 Part I. Introductory.
 Part II. Spitalfields Market.
 Part III. Superannuation and Pensions.
 Part IV. Miscellaneous.

Interpreta- 3. In this Act unless there be something in the
tion. subject or context repugnant to such construction—

“ The Corporation ” means the mayor and common-
alty and citizens of the city of London ;

“ The common council ” means the mayor aldermen
and commons of the city of London in common
council assembled ;

“ The city ” means the city of London ;

“ The improvements ” means the new street and
widening of streets by this Act authorised ;

“ The market ” means the Spitalfields Market of the
Corporation as from time to time existing ;

“ The general rate ” means the general rate of the
city ;

“ The Act of 1902 ” means the City of London
(Spitalfields Market) Act 1902 ;

“ The Act of 1912 ” means the City of London
(Various Powers) Act 1912 ; and

“ The Act of 1914 ” means the City of London
(Various Powers) Act 1914.

PART II.

SPITALFIELDS MARKET.

Incorporation of Acts. 4. The provisions of the Lands Clauses Acts (except
sections 127 to 131 of the Lands Clauses Consolidation
Act 1845) shall except so far as the same are expressly
varied by or are inconsistent with the provisions of this

Act be incorporated with and form part of this Act and for the purpose of such incorporation the term "the promoters of the undertaking" in the said Act shall be construed to mean the Corporation. A.D. 1922.

5. Subject to the provisions of this Act the Corporation may in the metropolitan borough of Stepney and in the lines and according to the levels shown on the deposited plans and sections make and maintain the improvements hereinafter described together with all necessary and proper footways works and conveniences connected therewith (that is to say):— Power to execute improvements.

- (1) A widening of Lamb Street and Spital Square on the south side thereof for a distance of ninety yards or thereabouts measured in a westerly direction from the north-eastern corner of Crispin Street:
- (2) A new street commencing in Spital Square eighty-five yards or thereabouts east of its junction with Bishopsgate and terminating at the junction of Steward Street and Brushfield Street:
- (3) A widening of Brushfield Street on the north side thereof for a distance of one hundred and fifteen yards or thereabouts measured in an easterly direction from Steward Street.

6. Subject to the provisions of this Act the Corporation may enter upon and take and use all or any of the lands shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of the improvements or for the purposes of providing space for an extension of the market and the erection of buildings adjoining or near thereto respectively or for the purposes of recoupment or exchange or for any purpose in connection with the market. Power to take lands.

7. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

8. The Corporation may stop up and discontinue so much of Fort Street as lies to the north-east of Steward Street and so much of Crispin Street and Gun Street as lies to the north of Brushfield Street and thereupon Stopping up streets.

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all rights of way thereover shall be extinguished and the site and soil thereof shall vest in the Corporation but the Corporation shall not stop up any such street or portion thereof or appropriate the site and soil thereof unless they are owners in possession of all houses and lands on both sides of the street or portion to be stopped up except so far as the owners lessees and occupiers of such houses and lands may otherwise agree. Provided that the Corporation shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

For protec-
tion of
Postmaster-
General.

9.—(1) Notwithstanding the stopping up and discontinuance of the streets or portions thereof referred to in the last preceding section the Postmaster-General may if he so desires (without derogation from any other right vested in him) remove from the said streets or portions thereof any telegraphic line of the Postmaster-General on or under the same or may abandon any such telegraphic line and the Corporation shall pay to the Postmaster-General the expenses incurred by him of and incidental to the removal of any such telegraphic line and of any telegraphic line connected therewith which in consequence will be rendered useless and such sum as may be agreed or failing agreement determined by arbitration to be the value of any such abandoned telegraphic line.

(2) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

(3) The expression “telegraphic line” in this section has the same meaning as in the Telegraph Act 1878.

Incorporation of
certain
provisions
of Act of
1914.

10. The provisions contained in the sections of the Act of 1914 the numbers and marginal notes of which are set forth in this section shall so far as applicable extend and apply to and in relation to the improvements as if they were re-enacted in this Part of this Act.

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- (1) The Corporation shall not commence any works under the powers of this Part of this Act which shall or may pass over under or by the side

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—

of or so as to interfere with any sewers of the Stepney Council until they shall have given to the Stepney Council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the Stepney Council with plans and sections of the works as hereinafter prescribed and until the Stepney Council shall have signified their approval of the same unless the Stepney Council do not submit their objections or signify their approval or other directions within twenty-eight days after service of the said plans and sections as aforesaid :

- (2) The plans and sections to be submitted to the Stepney Council under the provisions of this section shall be detailed plans drawings sections and specifications describing the exact position and manner in which and the levels at which the works are proposed to be constructed and shall accurately describe the position of all sewers of the Stepney Council within the limits of deviation shown on the deposited plans (for which purpose the Stepney Council shall allow the Corporation access to plans in their possession and to any of their sewers in order to enable the Corporation to obtain trustworthy information) and shall comprise detailed drawings of any alteration which the Corporation may propose to make in the said sewers :
- (3) The Stepney Council may require such modification to be made in the said plans drawings sections and specifications as may be reasonably necessary to secure the sewers and drainage system under the jurisdiction and control of the Stepney Council against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewers :
- (4) The Corporation shall comply with and conform to all reasonable orders directions and regulations of the Stepney Council in the execution of the said works and shall provide by new altered or substituted works in such manner as the

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Stepney Council shall reasonably require for the proper protection of and for preventing injury or impediment to the said sewers by reason of the intended works or any part thereof and shall save harmless the Stepney Council against all expenses to be occasioned thereby and all such works shall be done by or under the direction superintendence and control of the Stepney Council at the costs charges and expenses in all respects of the Corporation and all reasonable costs charges and expenses which the Stepney Council may be put to by reason of such works of the Corporation whether in the execution of works the preparation or examination of plans or designs superintendence or otherwise shall be paid to the Stepney Council by the Corporation on demand and when any new altered or substituted works as aforesaid or any works of defence connected therewith shall be completed by or at the costs charges or expenses of the Corporation under the provisions of this Part of this Act the same shall thereafter be as fully and completely under the direction jurisdiction and control of the Stepney Council as any sewers or works of the Stepney Council now or hereafter may be :

- (5) As regards any works in respect of which the Corporation are under the provisions of this section required to submit plans and sections to the Stepney Council the Stepney Council may require the Corporation in constructing such works to make any reasonable deviation within the limits prescribed by this Part of this Act from the line or levels shown upon such plans or sections for the purpose of avoiding injury or risk of injury to the sewers of the Stepney Council and the Corporation shall in constructing such works deviate accordingly :
- (6) The Corporation shall be liable to make good all injury or damage caused by or resulting from any of their works or operations to any sewers drains or works vested in the Stepney Council and the Stepney Council shall from

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time to time have power to recover the amount thereof from the Corporation :

(7) The approval of the Stepney Council of any plans or superintendence by the Stepney Council of any work under the provisions of this section shall not exonerate the Corporation from any liability or affect any claim for damages under this section or otherwise :

(8) Any dispute or difference which may arise between the Corporation and the Stepney Council under this section shall be settled by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Rates in respect of lands for market extension to be made good.

13. If and while the Corporation are possessed by virtue of this Act of any lands liable to be assessed to the general rate in the metropolitan borough of Stepney for the purposes of the extension of the market they shall from time to time until such extension shall be completed and assessed to such rate be liable to make good the deficiency in the assessment to such rate as aforesaid by reason of such lands having been taken or used for the purposes of the said extension and such deficiency shall be computed according to the assessment in force at the date at which the Corporation acquire such lands respectively.

Extension of time for purchase of lands under Act of 1914.

14. The powers conferred upon the Corporation by the Act of 1914 as extended by the City of London (Various Powers) Act 1920 for the compulsory purchase of lands for the purposes of the Act of 1914 are hereby extended for a period of three years from the passing of this Act.

Period for completion of certain improvements.

15. The improvements and the widening of Spital Square on the south side thereof of Lamb Street and of Brushfield Street authorised by the Act of 1914 shall be completed within a period of five years from the passing of this Act.

Power to sell and lease lands.

16. Subject to the provisions of the Act of 1902 the Act of 1914 and this Act the Corporation may if they think it expedient so to do sell exchange and dispose of or demise and lease all or any lands acquired by them

under or in pursuance of any of the said Acts and not required for the purposes thereof for such price or at such rent and on such terms and conditions and subject to such stipulations as to title as they shall think fit and may execute and do any deed act or thing proper for effectuating any such sale exchange demise or lease. A.D. 1922.

17. The Corporation shall apply all moneys from time to time received by them in respect of any sales or dispositions of lands and premises or by way of fine or premium on any lease under this Act on or towards paying off moneys borrowed and for the time being owing under this Act. Application of moneys from sale &c. of land.

18. The Corporation shall repay and reimburse to the mayor aldermen and councillors of the metropolitan borough of Stepney within a period of three months after the same shall be demanded in writing such costs charges and expenses as may be properly incurred by them in the cleansing and scavenging of so much of any street as is now used or shall hereafter be used for the purposes of the market and the Corporation and the said mayor aldermen and councillors may enter into and carry into effect agreements for the cleansing and scavenging of such streets by the Corporation Any dispute or difference which may arise between the Corporation and the said mayor aldermen and councillors under this section shall be settled by a surveyor to be appointed on the application of either party by the President of the Surveyors' Institution and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration. Scavenging of streets adjoining market.

19. It shall be lawful for the Corporation on every day of the week except Sunday to hold keep and maintain the market and the rents dues tolls piccage stallage and other profits advantages and emoluments which the Corporation are authorised to levy receive and recover at or in respect of the market may be levied received and recovered from the sellers or salesmen of commodities in the market : Market days.

Provided that this section shall not operate unless and until the Corporation complete the improvements and the widening of Spital Square on the south side thereof of Lamb Street and of Brushfield Street authorised by the Act of 1914.

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Regulation
of traffic.

20. The Corporation shall so regulate traffic at or in connection with the market as to avoid as far as reasonably practicable any interference with or obstruction of the tramways belonging to the London County Council.

Provision
in case of
acquisition
of market.

21. If the market is acquired within ten years from the passing of this Act otherwise than by agreement by any central market authority which may hereafter be established or by any public authority the Corporation shall not be entitled to bring into account or to make any claim or receive compensation in respect of the extension of the existing right to hold keep and maintain the market from two days to six days of the week in pursuance of the section of this Act of which the marginal note is "Market days."

Power to
Corporation
to borrow.

22. The Corporation may from time to time borrow for the purposes of the Act of 1902 Part II. of the Act of 1914 and this Part of this Act any sum or sums not exceeding in the whole two million pounds on the credit of the rents dues tolls piccage and stallage and other profits advantages and emoluments which the Corporation are authorised to levy receive and recover at or in respect of the market and as a collateral or second security on the credit of the general rate and such sum or sums may be borrowed by any one or more of the modes referred to in the Local Loans Act 1875 and that Act shall apply accordingly and the Corporation acting through the common council shall be a local authority and the rents dues tolls piccage and stallage and other profits advantages and emoluments aforesaid and the general rate shall respectively be the local rate within the meaning and for the purposes of that Act and the sum or sums borrowed under this section shall be discharged within the period of sixty years after the raising of the same by means of such one or more of the methods in the Local Loans Act 1875 mentioned as the common council may before raising the said sum or sums determine.

Payment of
market
expenses.

23. Notwithstanding anything contained in section 35 (Expenses of execution of Act) of the Act of 1914 all expenses incurred by the Corporation in carrying into effect the provisions of the Act of 1902 Part II. of the Act of 1914 and this Part of this Act or otherwise in connection with the market and the undertaking

referred to in the Act of 1902 shall be paid out of the revenue derived from the rents dues tolls piccage and stallage and other profits advantages and emoluments which the Corporation are authorised to levy receive and recover at or in respect of the market and so far as such revenue shall be insufficient for the purpose out of the general rate. Provided always that the amount of the general rate levied in any one year in pursuance of this section shall not exceed three pence in the pound. Any surplus of the said revenue in any year shall be carried to the credit of the general rate.

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24. The following enactments are hereby repealed:— Repeal.

The Act of 1902—

- Section 30 (Power to Corporation to borrow) ;
- Section 31 (Power to reborrow) ;
- Section 32 (Form of bond) ;
- Section 33 (Lenders not liable for misapplication) ;
- Section 34 (Power to borrow under Local Loans Act 1875) ;
- Section 35 (Power to Corporation to purchase and cancel securities under this Act) :

The Stepney Borough Council (Spitalfields Market) Act 1912 :

The City of London (Various Powers) Act 1920—

- Section 4 (Extension of time for purchase of lands under Act of 1914) ;
- Section 5 (Period for completion of street improvements) ;
- Section 6 (Increase of borrowing powers).

PART III.

SUPERANNUATION AND PENSIONS.

25. From and after the thirty-first day of March one thousand nine hundred and twenty-two the Act of 1912 shall be read and have effect as if the words "in or in connection with the public health and valuation and rating departments" were omitted from section 3 of that Act wherever those words occur in that section.

Funds under Act of 1912 to be applicable to all officers of Corporation.

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Pension
FundsNos. 1 and 2
to be closed
to new
entrants.

26. Notwithstanding anything contained in the rules of the Corporation of London Officers' Pension Funds No. 1 and No. 2 no person shall from and after the thirty-first day of March one thousand nine hundred and twenty-two be required or eligible to join or become a member of either of the funds to which those rules relate.

Pension
FundsNos. 1 and 2
to merge in
funds under
Act of 1912.

27. As from the thirty-first day of March one thousand nine hundred and twenty-two and notwithstanding anything contained in the rules of the Corporation of London Officers' Pension Fund No. 1 or No. 2—

(A) all moneys standing to the credit of either of the said funds shall be transferred to the superannuation fund or pension fund as the case may be established by the Act of 1912 ;

(B) all contributions and other payments which but for this section would have been payable into the said Fund No. 1 or No. 2 shall be paid into the superannuation fund or pension fund as the case may be established by the Act of 1912 ; and

(C) all pensions and other payments which but for this section would have been payable out of the said Fund No. 1 or No. 2 shall be paid out of the superannuation fund or pension fund as the case may be established by the Act of 1912.

Contribu-
tions of
Corporation
to funds
out of
general rate.

28. As from the thirty-first day of March one thousand nine hundred and twenty-two and notwithstanding anything contained in the rules of the Corporation of London Officers' Pension Fund No. 1 or No. 2 all contributions and other payments which but for this Act would have been payable by the Corporation into or in respect of the conduct and management of the said Fund No. 1 or No. 2 shall be paid out of the general rate.

Transfer of
members
from Pen-
sion Funds
Nos. 1 and 2
to funds
under Act
of 1912.

29. Any officer or servant of the Corporation being a member of the Corporation of London Officers' Pension Fund No. 1 or No. 2 shall upon written request made by him to the Corporation within one year after the passing of this Act be transferred to the superannuation or pension fund as the case may be established

by the Act of 1912 and as from the date of any such transfer the provisions of Parts IV. and V. of the Act of 1912 shall so far as applicable apply to any officer or servant so transferred and all obligations of such officer or servant to contribute to and all claims of such officer or servant on the said Funds No. 1 and No. 2 shall cease. A.D. 1922.
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PART IV.

MISCELLANEOUS.

30. Notwithstanding anything contained in section 111 (Port sanitary authority of port of London) of the Public Health (London) Act 1891 all the expenses of the Corporation as port sanitary authority of the port of London may from and after the thirty-first day of March one thousand nine hundred and twenty-two be paid by the Corporation in whole or in part out of the general rate. Payment of port sanitary expenses out of general rate.

31. Notwithstanding anything contained in the Holborn Valley Improvement (Additional Works) Act 1867 the Holborn Valley Improvement (Money) Act 1869 or the Holborn Valley and Farringdon Market Improvement Act 1872 or in any bond or other security granted thereunder or in pursuance thereof the sum or sums to be provided for interest and for contributions to sinking funds in respect of or otherwise for the repayment of the moneys borrowed under the said Acts may from and after the thirty-first day of March one thousand nine hundred and twenty-two be paid by the Corporation in whole or in part out of the general rate. Payments for Holborn Valley Improvements out of general rate.

32. The costs charges and expenses preliminary to and of and incidental to the preparing obtaining and passing of this Act shall be paid by the Corporation out of the general rate. Costs of Act.

Printed by EYRE and SPOTTISWOODE, LTD.,

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WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of Acts of Parliament.

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